Maryland’s Framework for Responsible AI in Education: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence in K-12 Public Schools: Maryland’s Framework for Responsible AI in Education (Maryland State Department of Education, Office of Teaching and Learning, Division of College and Career Pathways; last updated June 2026)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. One passage from a multi-column layout is transcribed from the extracted text and marked [graphic].

Purpose and Executive Summary (excerpt)

Source: page 2

At the same time, AI introduces risks related to privacy, bias, equity, academic integrity, and over-reliance on automated systems.

Vision for Artificial Intelligence in Maryland Schools (excerpt)

Source: page 2

Equity, transparency, privacy, and accountability are foundational. Maryland is committed to ensuring equitable access to AI-supported learning opportunities and to protecting student data through clear communication, human oversight, and compliance with all state and federal privacy, cybersecurity, and ethical standards.

Scope and Definitions: Scope (excerpt)

Source: page 3

The scope of this guidance includes AI use for teaching and learning, student AI literacy and curricular integration, professional learning and educator practice, data privacy and ethical safeguards, procurement and evaluation, operational uses, and governance, monitoring, and accountability. It applies to all AI tools that interact with Maryland students, staff, or data, regardless of how they are accessed or provided.

Roles and Responsibilities (excerpt)

Source: page 4

MSDE provides statewide leadership by establishing AI policy expectations and guardrails related to equity, privacy, security, accessibility, instructional quality, and civil rights compliance.

Local education agencies implement statewide expectations by adopting district AI policies, vetting, and approving tools, ensuring legal and privacy compliance, providing professional learning, monitoring systems for bias or unintended impacts, maintaining cybersecurity, communicating with families, and reporting concerns to MSDE.

Educators are the primary decision makers for instructional AI use. They are responsible for ethical and critical use, protecting academic integrity and student privacy, modeling responsible practices, and reporting concerns.

Students are responsible for following AI-use expectations, maintaining academic integrity, acknowledging permitted AI assistance, evaluating outputs critically, protecting their privacy, and reporting misuse.

Vendors must meet Maryland's standards for transparency, privacy, accessibility, equity, and security, including accurate disclosures, legal compliance, fairness testing, notification of system changes, and participation in audits. Tools that fail to meet these standards must not be used.

Data Privacy and Security

Source: page 5

Artificial intelligence increases the complexity of data privacy and security in Maryland schools because these systems rely on large volumes of data and often operate in opaque ways. Research shows that AI amplifies existing risks related to data collection, surveillance, re-identification, and cybersecurity, particularly for minors (Crawford, 2021; Reddy et al., 2020). Maryland's expectation is clear: AI use must never compromise student privacy or weaken data protections.

AI-related privacy risks include the collection of sensitive information through user inputs, the possibility of re-identifying anonymized data, expanded cybersecurity vulnerabilities, and limited transparency about how vendors store, use, or share data. These risks require proactive governance, strong safeguards, and continuous oversight.

PRIVACY & CIVIL RIGHTS LAWS

All AI use in Maryland schools must comply with federal and state privacy and civil rights laws, including FERPA, COPPA, PPRA, and applicable Maryland regulations. Algorithm-assisted decisions remain subject to nondiscrimination requirements, and districts retain full responsibility for protecting student rights (U.S. Department of Education, 2024). Schools must be transparent with families about how AI tools handle student data.

DISTRICT EXPECTATIONS

Maryland expects districts to minimize data collection by limiting student data shared with AI systems, avoiding entry of personally identifiable information into generative tools unless explicitly approved, restricting unnecessary data access, and providing alternatives when AI use is inappropriate. Collection of biometric, behavioral, or location data is prohibited unless legally required and educationally justified.

AI adoption increases cybersecurity risk. Districts must implement robust system protections, including secure authentication, encryption, vendor security requirements, staff training, and tested incident response plans. Privacy protections cannot be upheld without robust cybersecurity.

AI systems must operate with documented human oversight. Any AI-supported decision affecting students requires human review, clear procedures for addressing errors or harm, and regular audits for bias, accuracy, and unintended data collection.

Transparency with families is essential. Districts must clearly communicate what AI tools are used, what data are collected, how long data are retained, and when opt-out options apply, using accessible and culturally responsive formats.

Maryland will support districts through statewide guidance, templates, training, and reporting structures. The State's priority is to ensure that all AI used in public schools protects student privacy, strengthens security, and maintains public trust.

VENDOR EXPECTATIONS

AI vendors must meet strict privacy, security, and transparency standards. Districts must ensure contractual limits on data use, retention, and deletion; prohibit advertising, profiling, or unrelated model training; require disclosure of data practices; and ensure compliance with breach notification laws. Vendors that cannot demonstrate secure, education-focused data practices must not be used.

Professional Learning (excerpt)

Source: page 8

Core expectations include understanding foundational AI concepts, evaluating outputs for accuracy and bias, designing assignments that preserve academic integrity, communicating transparently with students and families, protecting student data, and recognizing when AI use is inappropriate.

Educators are expected to understand what AI can and cannot do, evaluate outputs critically, integrate AI in ways that strengthen student thinking, teach responsible student use, protect privacy, monitor impacts on equity and learning, and report concerns related to bias or misuse.

Student-Centered Learning with AI: LEA Expectations (excerpt)

Source: page 9 [graphic]

[graphic] Student use of AI must also support safe and ethical learning environments. Schools should set clear expectations related to data privacy, bias awareness, digital citizenship, and reporting concerns. These practices help students develop responsible habits for engaging with intelligent technologies beyond school.

Student AI Literacy and Curriculum Integration: Curriculum Integration (excerpt)

Source: page 10

Ethical use is foundational. Students must learn to protect privacy, recognize harmful or misleading outputs, understand the limits of machine reasoning, and use AI responsibly (Floridi & Cowls, 2019).

Operational and Administrative Uses (excerpt)

Source: page 11

Because these systems operate at scale and can affect student access to services and opportunities, they present heightened risks related to privacy, equity, transparency, and accountability.

Procurement and Vendor Governance

Source: page 12

Artificial intelligence tools used in Maryland schools must meet high standards for safety, transparency, privacy, equity, and educational value. Because AI products vary widely in data practices, accuracy, and risk, procurement processes must ensure that tools support learning and operations without compromising student rights or causing harm (Kumar et al., 2022).

Maryland requires rigorous vendor vetting, strong contractual protections, documented risk assessments, and ongoing monitoring. Procurement decisions must align with state goals, legal requirements, equity priorities, and responsible data stewardship, consistent with federal guidance

on ethical AI adoption in education (U.S. Department of Education, 2023).

Districts must prioritize tools with clear educational or operational value, transparent data practices, compliance with FERPA, COPPA, state privacy laws, and civil rights protections, and demonstrated attention to bias, fairness, and accessibility. Approval is an ongoing process, not a one-time decision. To support consistent practice, Maryland will provide vendor vetting rubrics, model contract language, a centralized list of vetted tools, professional learning, technical assistance, and reporting mechanisms to ensure statewide AI procurement protects students and upholds equity, transparency, and legal compliance.

Vendors must provide clear documentation on AI techniques, data collection and retention, use of data for model training, known limitations, accessibility and nondiscrimination measures, and evaluation populations. Tools that lack sufficient transparency must not be adopted. Contracts must include data minimization, limits on data use and sharing, security and breach response requirements, bias mitigation, audit rights, and clear termination and data deletion provisions.

[graphic] Before approval, districts must conduct documented risk assessments addressing data sensitivity, potential bias or inaccuracy, appropriateness for minors, transparency, and potential impacts on student placement, grading, discipline, or access to opportunity. Higher-risk tools require additional review and may be restricted or prohibited.

Conclusion (excerpt)

Source: page 13

This guidance establishes a statewide foundation for responsible AI use grounded in transparency, privacy, equity, and continuous improvement.